

BEFORE
THE FEDERAL MARITIME COMMISSION

DOCKET NO. 25-02

NIELSEN & BAINBRIDGE, LLC
Complainant

VS.

OCEAN NETWORK EXPRESS PTE. LTD.; ORIENT
OVERSEAS CONTAINER LINE LIMITED; OOCL
(EUROPE) LIMITED; EVERGREEN LINE JOINT
SERVICE AGREEMENT (FMC#011982); EVERGREEN
MARINE CORPORATION (TAIWAN) LTD.;
EVERGREEN MARINE (UK) LIMITED, ITALIA
MARITTIMA SPA; EVERGREEN MARINE (HONG
KONG) LTD.; EVERGREEN MARINE (SINGAPORE)
PTE. LTD.; AND YANG MING MARINE TRANSPORT
CORPORATION

Respondents

**RESPONDENT OCEAN NETWORK EXPRESS PTE. LTD.’s
RESPONSE IN OPPOSITION TO COMPLAINANT’S MOTION
FOR LEAVE TO INITIATE DISCOVERY OR,
IN THE ALTERNATIVE, TO SCHEDULE A STATUS CONFERENCE**

Respondent Ocean Network Express Pte. Ltd. ("Respondent ONE"), by counsel, files this Response in Opposition to Complainant Nielsen & Bainbridge, LLC’s (“Complainant NBG”) motion for leave to initiate discovery or, in the alternative, to schedule a status conference. Setting aside Complainant NBG’s failure to meet and confer prior to filing a motion¹, for the reasons set forth below, Respondent ONE respectfully requests that Complainant NBG’s motion be denied in its entirety.

¹ Contrary to 46 CFR §502.71, Complainant NBG did not discuss its subject motion with Respondent ONE in advance of filing.

RELEVANT FACTS

On December 31, 2024, Complainant NBG filed a Verified Complaint before the Federal Maritime Commission (“FMC”) alleging claims against several unrelated ocean transportation companies.²

Respondents Orient Overseas Container Line Limited and OOCL (Europe) Limited (collectively, “OOCL”) filed a Motion to Sever and Motion for a More Definite Statement on January 23, 2025.³ Respondent ONE filed its own Motion to Sever and Motion for a More Definite Statement on February 3, 2025.⁴ Complainant opposed these motions and OOCL filed a reply.⁵

On February 18, 2025, Complainant filed a Joint Status Report.⁶ Respondents ONE, the Evergreen companies, and Yang Ming Transportation Corporation joined a conference call in advance to discuss the status of the proceedings and their respective positions on discovery. Respondents ONE and these other Respondents contributed their own sections to this Joint Status Report.⁷

On June 18, 2025, the Honorable Linda S. Harris Crovella issued an Order on Motions to Sever and Motions for a More Definitive Statement.”⁸ On the issue of severing, Judge Crovella is “inclined to sever into separate cases the claims against each Respondent.”⁹ Judge Crovella then “ORDERED that both motions to sever are DEFERRED pending a determination regarding the appropriate Respondents to join in each proceeding going forward.”¹⁰ Judge Crovella “FURTHER ORDERED that the parties file briefs... addressing whether any of the Respondents should be

² See Verified Complaint, FMC Docket 25-02, Doc. No. 1.

³ See OOCL motion, FMC Docket 25-02, Doc. No. 13.

⁴ See ONE motion, FMC Docket 25-02, Doc. No. 17.

⁵ See NBG opposition and OOCL reply, FMC Docket 25-02, Doc. Nos. 21 and 23.

⁶ See Joint Status Report, FMC Docket 25-02, Doc. No. 22.

⁷ See Joint Status Report, FMC Docket 25-02, Doc. No. 22 at 6-8.

⁸ Order, FMC Docket 25-02, Doc. No. 24.

⁹ Id. at 6.

¹⁰ Id. at 8.

joined in a proceeding because they were part of an alliance during the relevant service contract year.”¹¹

In denying the motions seeking a more definite statement of Complainant’s alleged claims, Judge Crovella explained that: “once the proceeding is severed, NBG will be required to amend the current complaint to specify damages consistent with the below, and similarly must specify damages in the complaints filed in severed proceedings, alleged to be attributable to each Respondent for the period in which reparations are obtainable.”¹²

In response to the June 18, 2025 Order, Respondent OOCL, Respondent ONE, and Complainant NBG all filed supplemental replies as to how to sever the proceedings.¹³ The FMC has not yet ruled further on the issue of how to sever the proceedings.

ARGUMENT

Complainant NBG’s motion should be denied in its entirety because further discovery is premature, Complainant NBG is not uniquely prejudiced by any delay, and Respondent ONE continues to cooperate.

I. Further discovery is premature.

The Respondents OOCL and ONE filed motions to sever.¹⁴ Your Honor has determined that the proceedings should be severed, and ordered the parties to submit supplemental briefings to address whether these proceedings should be severed completely by individual Respondents.¹⁵ Respondents OOCL and ONE both responded with the same position – the proceedings against

¹¹ Id.

¹² Order, FMC Docket 25-02, Doc No. 24 at 6.

¹³ See FMC Docket 25-02, Doc Nos. 25, 26, and 27.

¹⁴ See OOCL motion, FMC Docket 25-02, Doc. No. 13; ONE motion, FMC Docket 25-02, Doc. No. 17.

¹⁵ See Order, FMC Docket 25-02, Doc. No. 24 at 6 and 8.

them should be severed completely from each other, and not grouped by alliance or any other connection.¹⁶

More importantly, Your Honor's final decision on the motion to sever will require Complainant NBG to amend the Verified Complaint to include only allegations and specified damages against each Respondent.¹⁷ As confirmed by the FMC Rules of Practice and Procedure ("FMC Rules"), the timing of Respondent ONE's duty to answer this future Verified Amended Complaint; the timing of mandatory alternative dispute resolution; Respondent ONE's participation in discovery; and, ultimately, the schedule and nature of the proceeding flow from the filing of this future Verified Amended Complaint.¹⁸

As to initial discovery and a status conference specifically, if the resulting allegations change by way of a future Verified Amended Complaint, then the scope of discovery, including search terms and relevant custodians, could change as well. Accordingly, Respondent should not be required to participate in discovery until the pending motions to sever are resolved, a future Amended Verified Complaint is filed, and potential future motions for a more definite statement are resolved or an Answer to the future Amended Verified Complaint is filed.

II. Complainant NBG is not uniquely prejudiced by any delay

Complainant NBG filed the Verified Complaint, in January of 2025, alleging violations that occurred in 2020 through 2022.¹⁹ Years have already passed, and Complainant NBG elected to wrongfully combine separate, unrelated claims against unrelated ocean carriers.²⁰ Your Honor already agrees in principle that these proceedings should be severed.²¹

¹⁶ See FMC Docket 25-02, Doc Nos. 25 and 26.

¹⁷ See FMC Docket 25-02, Doc No. 24 at 6.

¹⁸ See 46 CFR §§502.62, 502.64, and 502.141.

¹⁹ See Verified Complaint, FMC Docket 25-02, Doc. No. 1.

²⁰ See OOCL motion, ONE motion, and OOCL reply, FMC Docket 25-02, Doc. Nos. 13, 17, and 23.

²¹ See Order, FMC Docket 25-02, Doc. No. 24 at 6 and 8.

All of the parties will have to deal with fading witness memories, and the significant expense of preserving and hosting data related to very broad claims. Complainant NBG will not suffer these self-imposed difficulties alone. However, the motions to sever, and discovery as a whole, must be allowed to operate as per the FMC Rules both as a practical matter and in order to avoid unnecessary additional prejudice to Respondent ONE. On a practical level, Complainant NBG's alleged claims need to be realleged in the form of a future Amended Verified Complaint before Respondent ONE can respond to them.²² As a matter of prejudice, Respondent ONE should not have to also deal with the unrelated discovery of other Respondent carriers and keep sensitive materials away from other Respondent carriers.²³

III. Respondent ONE continues to cooperate.

Complainant NBG's characterization that Respondent ONE has refused to participate in discovery is disingenuous. Respondent ONE has responded to every inquiry by Complainant NBG and contributed to the creation of the February 18, 2025 Joint Status Report.²⁴ However, the pending motions to sever, and the subsequent impact thereof, make active participation in discovery premature. Under these circumstances, Respondent ONE's refusal to act contrary to the FMC Rules can not be held against them.

²² See Order, FMC Docket 25-02, Doc No. 24 at 6.

²³ See ONE supplemental brief, FMC Docket 25-02, Doc No. 26 at 2-3.

²⁴ See Joint Status Report, FMC Docket 25-02, Doc. No. 22 at 6-8.

CONCLUSION

Therefore, Respondent ONE respectfully request that Your Honor deny Complainant NBG's motion in its entirety, and for any other relief Your Honor deems fit.

Dated: August 22, 2025
New York, New York

Respectfully submitted,

Montgomery McCracken Walker & Rhoads LLP

/s/Timothy Semenoro
Timothy Semenoro
Wook Chung
Robert O'Connor
Kaspar Kielland
Matteo Bonuzzi
437 Madison Avenue
New York, New York 10022
Tel: 212 867 9500
tsemenoro@mmwr.com
wchung@mmwr.com
roconnor@mmwr.com
kkielland@mmwr.com
mbonuzzi@mmwr.com

*Counsel for Respondent
Ocean Network Express Pte. Ltd.*

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on this 22nd day of August 2025, the foregoing Response in Opposition to Complainant's Motion for leave to initiate discovery or, in the alternative, to schedule a status conference was served via electronic mail on:

Attorneys for Complainant Nielsen & Bainbridge, LLC:

HUTH REYNOLDS LLP
Gregory A. Crapanzano II (gcrapanzano@huthreynolds.com)
809 N. 26 Street
Richmond, VA 23223
Tel: (917) 575-3440
Fax: (646) 664-1512

HUTH REYNOLDS LLP
Karl C. Huth (huth@huthreynolds.com)
Caden Otunu (cotunu@huthreynolds.com)
Mohini P.B. Rarrick (mpriya@huthreynolds.com)
41 Cannon Court
Huntington, NY 11743
Tel: (212) 731-9333 / (845) 423-0360 / (818) 235-9753
Fax: (646) 664-1512

HUTH REYNOLDS LLP
Matthew J. Reynolds (reynolds@huthreynolds.com)
7800 Grampian Court
Chesterfield, VA 23838
Tel: (646) 872-9353
Fax: (646) 664-1512

Attorneys for Respondent Orient Overseas Container Line Limited and OOCL (Europe) Limited:

BLANKROME
Keith B. Letourneau (Keith.Letourneau@BlankRome.com)
Evan Spencer (Evan.Spencer@blankrome.com)
717 Texas Avenue, Suite 1400
Houston, TX 77002
Tel: (713) 402-7640

BLANKROME
Matthew J. Thomas (Matthew.Thomas@blankrome.com)
Emma C. Jones (Emma.Jones@blankrome.com)
1825 Eye Street NW
Washington, D.C. 20006
Tel: 202) 772-5971

JEFFREY/FENNEMAN LAW + STRATEGY, PLLC
Eric C. Jeffrey (EJeffrey@JeffreyFenneman.com)
Rebecca A. Fenneman (RFenneman@JeffreyFenneman.com)
Kaya C. Massey (KMassey@JeffreyFenneman.com)
Nicholas L. Webb (NWebb@JeffreyFenneman.com)
700 12th Street, NW Suite 700
Washington, DC 20005
Tel: (202) 904-2301

Attorneys for Respondents
Evergreen Line Joint Service Agreement (FMC#011982), Evergreen Marine Corporation (Taiwan) Ltd., Evergreen Marine (UK) Limited, Italia Marittima Spa, Evergreen Marine (Hong Kong) Ltd., Evergreen Marine (Singapore) Pte. Ltd., and Yang Ming Marine Transport Corporation

MAHONEY & KEANE, LLP
Edward A. Keane (ekeane@mahoneykeane.com)
Garth S. Wolfson (gwolfson@mahoneykeane.com)
40 Worth Street, Suite 602
New York, New York 10013
Telephone: (212) 385-1422

/s/Kaspar Kielland
Kaspar Kielland